

## Vijay Krishna Agrawal & Anr. v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 20 July 2010 (interim order; writ petition pending) · WRIT - C No. - 33297 of 2010 · **Writ petition pending; not finally decided. By interim order dated 20 July 2010 the Division Bench directed restoration of the consumer's electricity connection subject to the consumer depositing, within a week, the amount assessed by the order dated 19 May 2010 limited to one year preceding the inspection dated 24 February 2010, with liberty to pay regular bills as raised. The challenge to the assessment — that under Annexure 6.3 of the U.P. Electricity Supply Code, 2005 the assessment period is capped at 365 days, and that the order violated natural justice — remains to be decided. After the deaths of both original petitioners their heirs were substituted (delay condoned, 2023); relief clauses 1(a) and 1(b) were not pressed on 18 March 2026, and the matter was last listed for 2 April 2026.**

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### HEADNOTE

This is the order-sheet record of a pending writ petition challenging an assessment order dated 19 May 2010 which, on the basis of an inspection dated 24 February 2010, assessed the consumer from December 2002. The petitioner contended that under Annexure 6.3 of the U.P. Electricity Supply Code, 2005 the maximum period for which an assessment could be made is 365 days, so the assessment running back to December 2002 was per se contrary to the statutory provision; the respondent-Corporation contended that Annexure 6.3 applies only where the period of unauthorised use cannot be ascertained. The Division Bench did not decide that question. By interim order dated 20 July 2010 it directed that the disconnected supply be restored on the consumer depositing, within a week, the amount assessed limited to one year before the 24 February 2010 inspection (with liberty to pay regular bills) — a deposit confined, on a prima facie view, to a single year. A subsequent 'correction application' seeking to stay an earlier order was rejected as misconceived, with liberty to move a stay application. Both original petitioners having died, their heirs were substituted in 2023 (delay condoned). On 18 March 2026 the petitioners did not press relief clauses 1(a) and 1(b), pressing the challenge that the assessment order was passed in violation of natural justice; the writ was listed for 2 April 2026 and remains undecided on the merits.

### FACTUAL SUMMARY

Vijay Krishna Agrawal and Smt. Tara Rani Agrawal filed Writ - C No. 33297 of 2010 before the Allahabad High Court challenging an assessment order dated 19 May 2010 by which, on the basis of an inspection dated 24 February 2010, they were assessed from December 2002. The petitioners' case was that Annexure 6.3 of the U.P. Electricity Supply Code, 2005 fixes the maximum period of assessment at 365 days, rendering an assessment reaching back to December 2002 statutorily impermissible; the respondent-Corporation (represented by Sri H.P. Dube) maintained that Annexure 6.3 operates only when the period of unauthorised use cannot be ascertained. On 20 July 2010 the Division Bench, without deciding the point, granted interim relief conditioning reconnection on the deposit within a week of the amount assessed for one year preceding the 24 February 2010 inspection, permitting regular bills to be paid as raised. On 30 July 2010 a purported 'correction application' seeking a stay of an earlier order (dated 30 May 2010) was rejected as not being a correction application, with liberty to file a stay application. The matter thereafter lay through several benches; both petitioners died (Smt. Tara Rani Agrawal on 23 May 2012 and Vijay Krishna Agrawal on 25 December 2022) and their four sons and one daughter were substituted as heirs in 2023, delay being condoned. On 18 March 2026, the petitioners' counsel did not press relief clauses 1(a) and 1(b), confining the challenge to the assessment order's alleged violation of natural justice; counsel for the Electricity Department had changed, and counter affidavits were directed. The petition was listed for 2 April 2026 and stands undecided.

### REUSABLE CONSTRUCTIONS

1. Where a consumer challenges an assessment for unauthorised use as exceeding the assessment-period cap contended under Annexure 6.3 of the U.P. Electricity Supply Code, 2005, an interim order may restore the disconnected supply on the consumer depositing only the amount assessed for the one year preceding the inspection, with liberty to pay current bills, leaving the merits of the period-of-assessment question to be decided finally. *order of 20.07.2010*

## QUESTION

On what terms should a disconnected consumer's supply be restored pending adjudication of the challenge to an assessment order said to exceed the 365-day cap under Annexure 6.3 of the Supply Code, 2005?

## HOLDING

By interim order, the Division Bench directed that the electricity connection be restored subject to the consumer depositing, within a week, the amount assessed under the order dated 19 May 2010 limited to a period of one year before the inspection dated 24 February 2010, with liberty to pay regular bills as raised. The deposit was confined to one year's assessment, prima facie reflecting the consumer's contention that under Annexure 6.3 of the Supply Code, 2005 the assessment period is capped at 365 days, while the validity of the assessment (and the competing reading that Annexure 6.3 applies only when the period cannot be ascertained) was expressly left to be decided finally.  
order of 20.07.2010

## QUALIFIER

Interlocutory order; the merits (the 365-day assessment-period cap and the natural-justice challenge) remain undecided and the writ is pending, last listed for 2 April 2026.

**EVIDENCE** “subject to petitioner depositing the amount as assessed by the order dated 19th May, 2010 to the extent for a period of one year before 24th February, 2010 within a week, the electricity connection of the petitioner shall be connected.”  
order of 20.07.2010

**EVIDENCE** “Petitioner however, may deposit the regular bills as and when they are raised.” order of 20.07.2010

**FLAG** Source is an order-sheet compilation without printed page numbers or numbered paragraphs; pins are order dates. Coram is the bench that passed the substantive interim order dated 20.7.2010; the matter has since travelled through later benches (most recently Atul Sreedharan, J. and Siddharth Nandan, J.).

## PRINCIPLE TAGS

**interim-restoration-on-security-pending-fresh-assessment**

Supply was restored on the consumer depositing the amount assessed for one year preceding the inspection (with liberty to pay current bills), pending final decision on the assessment's validity. order of 20.07.2010

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER, UNDER ANNEXURE 6.3 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, THE MAXIMUM PERIOD FOR WHICH AN ASSESSMENT CAN BE MADE IS 365 DAYS, OR WHETHER ANNEXURE 6.3 APPLIES ONLY WHEN THE PERIOD OF UNAUTHORISED USE CANNOT OTHERWISE BE ASCERTAINED**

The competing contentions were recorded on 20 July 2010 but not decided; counter and rejoinder affidavits were directed and the matter remains pending. Compare the spine authority holding the 365-day period a fallback rather than a default. [SCJ-211]  
order of 20.07.2010

**NOT DECIDED — WHETHER THE ASSESSMENT ORDER DATED 19 MAY 2010 WAS PASSED IN VIOLATION OF THE PRINCIPLES OF NATURAL JUSTICE**

Pressed as the live ground on 18 March 2026 after relief clauses 1(a) and 1(b) were given up; counter affidavits directed, matter listed for 2 April 2026 and undecided. [SCJ-087] order of 18.03.2026

## RELATED CASES — SEE ALSO

**SCJ-211** — Decides the assessment-period question at issue here — the Annexure 6.3 formula and the 365-day period in assessing unauthorised use under Section 126(5) read with Clause 6.8(c)(iii) of the Supply Code — treating the 365 days as a fallback rather than an automatic default.

**SCJ-087** — Mirrors both the interim posture (restoration on security pending fresh assessment) and the live ground here — a Section 126 assessment order quashed for not dealing with objections or recording a hearing, i.e. natural justice.

**SCJ-661** — Another assessment of unauthorised use under Section 126 engaging the Annexure 6.3 / 365-day assessment-period question raised, but not yet decided, in this petition.

